



BERNHARDT RILEY
— ATTORNEYS AT LAW —

INTAKE PACKET – CONTRACTOR DISPUTE

Client Name 1: (First Name, Last Name):	Austin Tyler
Client Name 2: (First Name, Last Name):	
Property Address:	13178 Kegan St, Windermere FL 34786
County:	Orange
Contractor Name:	The Flooring Center
Contract Price:	\$12,397.16
Amount Paid Towards Contract Price:	\$6,198.58
Lien filed?	☒ Yes (if so, please provide copy of Notice of Lien); or ☐ No
Are there damages?	☐ Yes or ☐ No If yes, please list out the damages and estimated amount of each: Unsure how to answer. The floor was not acclimated and nobody has provided evidence that floor was checked for moisture compatibility before install. Warranty possibly void. Floor started un-adhering from subfloor within 1-2 days of install in master bedroom. Chip on the floor from the installers that was incorrectly repaired. The delivered floor finish is not what was advertised.
Have you received estimates/invoices for repairs?	☐ Yes (if so, please provide copy of estimate/invoice); or ☒ No
Place a check by the following documents you may have to upload for your legal team's review:	☐ Contract ☒ Estimate/Invoice ☒ Correspondence with the Contractor (emails, texts, letters etc.) ☒ Pictures ☒ Other: <u>Manufacturer paperwork</u>
Desired Outcome:	Not sure what is reasonable. Either full removal and refund and release from responsibility or new floor with advertised finish installed properly.

Personal Injury Criminal Defense Debt Defense Real Estate Litigation Business Formation

Palm Harbor
2706 Alternate US-19 N.
Suite 213
Palm Harbor, FL 34683

Clearwater
13575 58th St N.
Clearwater, FL 33760

Tampa
1228 E. 7th Avenue
Tampa, FL 33605

Northwest Florida
495 Grand Blvd. #206
Miramar Beach, FL 32250



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Please provide a **brief** timeline of events pertaining to your matter. Include dates of importance, transactions and/or events. Your legal team will contact you for additional details:

June 19, 2025 - Visited the Flooring Center Dr. Phillips to look at floors.
June 21, 2025 - Returned to the Flooring Center to get a quote for Chesapeake Cromwell Engineered Hardwood in Sugarloaf color. I mentioned I had concerns about that suitability of the subfloor in the master bedroom. Joe Barrett assured me that the installers had means of addressing subfloor issues. Joe Barrett offered to come measure himself and take a look at subfloor.
June 23, 2025 - Joe Barrett came to 13178 Kegan to measure for a floor quote. I showed him the master bedroom subfloor. He assured me that it was not bad and the installer would be able to prepare it for suitable engineered floor installation. Joe presented the quote before leaving, but didn't know lead time.
June 26, 2025 - I call The Flooring Center to get info about floor lead time.
July 5, 2025 - I placed order for floor in person at The Flooring Center Dr. Phillips. I mentioned that with September-20-something arrival install would need to wait until October when I return from business trip in France.
August 11, 2025 - I received a call from The Flooring Center that floor came in early. They said they had a cancellation in their installation schedule and wanted to start August 12.
August 12, 2025 - Installers arrive with floor in trailer and park trailer on driveway. I talked to installation company owner about subfloor concerns and walk the job site with him. Installers prep subfloor and install a few rows of planks. Installers leave for the day with the remaining boxes of floor inside trailer in my driveway overnight.
August 13, 2025 - Installers return and nearly finish installing the floor. Half of middle bedroom remains, plus closet. They are short a few boxes and said they would be back the next day to finish.
August 14, 2025 - Installers finish the remainder of the floor and while installers were cleaning up I overhear one installer talk to the owner about an issue with the floor in the master bedroom. The owner tells the installer that it's a bedroom and I'll put a bed over it. It isn't a problem. The installers come downstairs, say they are done and leave.
August 15, 2025 - I call the flooring center to ask Joe to come out and see issues with installation and floor finish
August 16, 2025 - Joe returns my call and agrees to come out to see floor on August 18th.
August 18, 2025 - Joe comes to see floor. I show him squishing floor in master bedroom, rubbing wall in master closet, finish issues, a gap in the hallway outside of master bedroom, and a chip that was improperly repaired in hallway. I remind Joe of my business trip from August 25-Oct 3
August 22, 2025 - Two installers return and pull up a few planks in master bedroom and reinstall, put a bunch of countersunk screws in face of planks, fix wall rub issue in closet.
August 26, 2025 - Joe starts iMessage conversation and asks for payment.

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